

11	Chavos & Rau, APLC vs. USA National Title Company Inc. 2019-01085921	Defendant/Appellant's Motion to Use a Settled Statement Defendant/Appellant USA National Title Company, Inc.'s (Defendant) Motion to Use a Settled Statement is DENIED. Defendant moves for an Order permitting the use of a Settled Statement on appeal instead of a Reporter's Transcript, pertaining to the oral proceedings which comprised pre-trial motions, trial proceedings, and post-trial motions. Defendant also moves the Court for a deadline for submitting the proposed Settled Statement. Under California law, "[a] settled statement operates to make up for the absence of a reporter's transcript of oral proceedings, and not to supply what was omitted from those proceedings." <i>Quintero v. Tilton</i> (C.D. Cal. 2008) 588 F.Supp.2d 1121, 1128 fn. 5 [citing <i>People v. Griffin</i>, 33 Cal.4th 536 (2004) 554 n. 4 (citations omitted)]. "[T]he purpose of a settled statement is to provide the appellate court with a record of trial court proceedings for which there is no formal contemporary record, commonly because the court reporter's notes have been lost ... or because a court reporter was not present to record the proceedings.... In other words, the settled statement is used for filling 'gaps in the [appellate] record.... Consistent with this limited purpose, the settled statement is 'intended to ensure that the record transmitted to the reviewing court preserves and conforms to the proceedings actually undertaken in the trial court,' not to 'allow parties to create proceedings, make records, or litigate issues which they neglected to pursue earlier.'" <i>People v. Anderson</i> (2006) 141 Cal.App.4th 430, 440. This motion to use Settled Statement is brought under <i>California Rules of Court</i>, Rule 8.137. Defendant seeks to use a Settled Statement as the designated oral proceedings were not reported by a court reporter. Under <i>CRC</i> Rule 8.137, Defendant did not need to file the instant Motion. Pursuant to Rule 8.137(a)(1), Defendant simply needed to indicate in the notice designating the record on appeal that it wanted to use a settled statement as the record of the oral proceedings, which Defendant did. (ROA 846).
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	However, once Defendant elected in its notice designating the record on appeal under <i>CRC</i> Rule 8.121 to use a Settled Statement, <i>CRC</i> Rule 8.137(c) requires the Defendant to serve and file a proposed statement in the superior court within 30 days after filing its notice.; i.e., Defendant was required to file its proposed settled Statement within 30 days of 12/4/24—or by 1/3/2025. It did not. Plaintiff contends the motion is untimely. Therefore, Plaintiff concludes Defendant has forfeited its right to proceed on appeal by way of a Settled Statement. Defendant argues it timely filed the instant Motion. On January 9, 2025, the Appellate Court filed its Amended Notice of Default, the instant Motion was required to be filed within 15 days of that issuance. Defendant contends it timely filed the Motion to Use Settled Statement 14 days later, on January 23, 2025. Defendant provides no legal authority for these purported deadlines. Regardless, after failing to timely serve and file the proposed Settled statement with the superior court, Defendant now seeks a second bite at the apple under <i>CRC</i> Rule 8.137(b)(2). <i>CRC</i> Rule 8.137(b)(2) provides no relief. First, 8.137(b)(2) states a motion to use a settled statement instead of a reporter’s transcript may be filed “for reasons <u>other than</u> those listed in (1)” (emphasis added). 8.137(a)(1)(A) lists “[t]he designated oral proceedings in the superior court were not reported by a court reporter”—the specific reason claimed by Defendant for seeking a settled statement. Therefore, there is no <u>other than</u> reason. Second, a motion filed under 8.137(b)(2): “(A)...must be supported by a showing that: (i) A substantial cost saving will result and the statement can be settled without significantly burdening opposing parties or the court...” Defendant seeks to NOW create a settled statement for what appears to be at least 27 different days from April 3, 2024, to November 12, 2024—to include 15 days of trial between May 28, 2024 through July 3, 2024. Some of these dates are more than one year ago. Such a request would greatly burden the opposing party and the Court. Accordingly, the motion is DENIED.
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		Responding party Plaintiff to give notice.
12	Kaneshiro vs. City of Fullerton 2024-01372395	Motion for Determination of Good Faith Settlement Cross-Defendant Louise Jenkins' Motion for Determination of Good Faith Settlement is CONTINUED to 06/02/2025 at 01:45 PM in Department C15. This Motion has previously been continued twice and a prior motion for determination of good faith settlement was denied due to Cross-Defendant failing to provide sufficient evidence of the proportion of liability and her financial condition. Most recently on 2/3/25, the Court continued the Motion to allow the City to conduct discovery regarding Cross-Defendant's financial condition, specifically related to her rental income and equity in a Pomona house. Cross-Defendant has not filed any new papers since the last hearing. The City filed an opposition and declaration. Cross-Defendant's deposition was noticed for 4/22/25 including requests for discovery regarding her financial condition. (Gridley Decl., Ex. 5.) Neither party has submitted any expert testimony regarding each parties' proportionate liability. The City submitted the police report as part of Gridley's declaration; however, the police report is not sufficient evidence on which to base a determination of liability. Moving party may submit any additional evidence including evidence regarding her claims of each parties' proportionate liability by 5/12/25. Any opposition including evidence regarding financial condition and claimed proportionate liability is due by 5/19/25. Moving party to give notice.